

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act supporting the pursuit of justice against ICE.

PETITION OF:

NAME:

Rebecca L. Rausch

DISTRICT/ADDRESS:

Norfolk, Worcester and Middlesex

SENATE No.

By Ms. Rausch, a petition (accompanied by bill) (subject to Joint Rule 12) of Rebecca L. Rausch for legislation to support the pursuit of justice against ICE. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act supporting the pursuit of justice against ICE.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 12 of the General Laws, as appearing in the 2024 Official Edition, is hereby
2 amended by inserting after section 11I the following section:-

3 Section 11I 1/4. (a) Every person who, under color of any law, statute, ordinance,
4 regulation, custom, or usage, subjects, or causes to be subjected, any person within the
5 jurisdiction of this commonwealth to the deprivation of any rights, privileges, or immunities
6 secured by the United States Constitution or the constitution of the commonwealth, shall be
7 liable to the party injured in an action at law, suit in equity, or other proper proceeding for
8 redress; provided, however, that in any action brought against a judicial officer for an act or
9 omission taken in the officer's judicial capacity, injunctive relief shall not be granted unless a
10 declaratory decree was violated or declaratory relief was unavailable. For purposes of this
11 section, color of any law, statute, ordinance, regulation, custom, or usage includes color of any
12 statute, ordinance, regulation, custom, or usage, of the United States and of any state or territory
13 or the District of Columbia.

(b) An action brought under this section may be filed either in the superior court for the county in which the conduct complained of occurred or in the superior court for the county in which a person whose conduct complained of resides or has their place of business.

(c) A defendant in an action brought under this section may assert an immunity defense only to the extent available to a person sued under section 1983 of title 42 of the United States Code under like circumstances; provided, however, that this subsection shall not be construed to waive or abrogate any defense of sovereign immunity otherwise available to a party. This subsection does not alter, amend, create, or support a qualified or absolute immunity defense in any other action or proceeding brought under any other provision of Massachusetts law.

(d) In any action or proceeding brought under this section, the court, in its discretion, may award a prevailing plaintiff: (i) reasonable attorney's fees and costs; provided, however, that in any action brought against a judicial officer for an act or omission taken in the officer's judicial capacity and within the officer's jurisdiction, the officer shall not be held liable for any fees or costs; and (ii) expert fees.

(e) An action brought under this section shall be commenced not later than ten years after the date the cause of action accrues.

(f) The provisions of this section are severable. If any provision of this section or its application is held invalid, that invalidity shall not affect other provisions or applications that can be given effect without the invalid provision or application.

(g) This section shall apply retroactively to January 20, 2025.